

TENTATIVE RULINGS for LAW and MOTION

April 23, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Baker v. Yolo County**
 Case No. CV2025-0917

Hearing Date: **April 23, 2026** **Department Eleven** **9:00 a.m.**

Petitioner Mark Baker’s motion to compel certification of administrative record is **DROPPED FROM CALENDAR AS MOOT**. On April 10, 2026, respondent Yolo County lodged a certified administrative record with this Court. (Notice of Lodging of Administrative Record, pp. 1-2, Exh. A [4/10/26].) Therefore, there is nothing for this Court to compel. (See *In re S.P.* (2020) 53 Cal.App.5th 13, 16 [“Courts do not decide issues that can provide no effective relief for the parties or will have no impact on their future rights”].)

TENTATIVE RULING

Case: **Interstate Management Company, LLC v. Presidioco Holdings, LLC**
Case No. CV2025-1172

Hearing Date: **April 23, 2026** **Department Fourteen** **9:00 a.m.**

The verified application to appear as counsel pro hac vice of Shane P. Simon is **DENIED WITHOUT PREJUDICE**. (Cal. Rules of Court, rule 9.40.) The applicant did not serve the application and notice of hearing by mail on all parties who have appeared in the case. (Cal. Rules of Court, rule 9.40(c)(1); Code Civ. Proc., § 1013a.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rule of Court 3.1312 or further notice is required.

TENTATIVE RULING

Case: Lewis v. Swartz
Case No. CV2023-1829

Hearing Date: April 23, 2026 **Department Eleven** **9:00 a.m.**

Defendant Cemex Construction Materials Pacific, LLC's motion to compel further responses to requests for production of documents, set five is **DENIED AS MOOT**. (Code Civ. Proc., § 2031.310.) On April 7, 2026, plaintiff Ronald Lewis served supplemental responses to requests for production of documents, set five, "along with a concurrent supplemental production." (Markey decl., ¶ 2, Exhibit A; Liu decl. ISO reply, ¶ 3.) Therefore, there is nothing remaining to compel. (See *In re S.P.* (2020) 53 Cal.App.5th 13, 16 ["Courts do not decide issues that can provide no effective relief for the parties or will have no impact on their future rights"].)

Defendant's request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2031.310, subd. (h), 2023.010, subds. (e) & (i), 2023.020, 2023.030, subd. (a), 2023.050, subd. (a)(3).) First, plaintiff did not unsuccessfully oppose this motion to compel further responses. (Code Civ. Proc., § 2031.310, subd. (h).) Second, as the Court is denying defendant's motion as moot, the Court is not determining whether plaintiff made unmeritorious objections to discovery. (Code Civ. Proc., § 2023.010, subd. (e).) Finally, plaintiff did not fail to meet and confer in good faith. (Code Civ. Proc., §§ 2023.050, subd. (a)(3), 2023.010, subd. (i), 2023.020; Liu decl., ¶¶ 10-13.) Rather, defendant did not adequately meet and confer before filing this motion. (See Code Civ. Proc., § 2016.040 [requiring a meet and confer declaration to show "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion"]; Liu decl., ¶¶ 10-13, Exhibits F & G.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Martinez v. Martinez**
Case No. CV2025-3459

Hearing Date: **April 23, 2026** **Department Eleven** **9:00 a.m.**

Defendant and cross-complainant Sergio Martinez's unopposed request to reopen discovery is **GRANTED**. (Code Civ. Proc., § 2024.050; Pillard decl. ISO ex parte application [filed April 15, 2026], ¶¶ 2-29.)

Defendant's unopposed motion to compel plaintiff and cross-defendant Servando Martinez to serve discovery responses is **GRANTED IN PART**. (Code Civ. Proc., §§ 2025.450, 2030.290, 2031.300.) As to defendant's requests for production of documents (set one), special interrogatories (set one), and form interrogatories (set one), plaintiff shall serve verified responses, without objections, together with any responsive documents by no later than **April 23, 2026, at 5:00 p.m.** As to documents requested in the notice of deposition, defendant's motion does not "set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (b)(1); Motion, Attachment E [Deposition Notice].)

Defendant's request for sanctions is **GRANTED**, in the amount of **\$2,300.65**, against plaintiff. (Code Civ. Proc., § 2023.030; Pillard decl., ¶¶ 4-6, 10.) Plaintiff shall pay the sanction by **May 26, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zapuskalova v. Yolo County Children's Alliance**
 Case No. CV2024-1877

Hearing Date: **April 23, 2026** **Department Eleven** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiff Anna Zapuskalova's unopposed motion for final approval of class action settlement and motion for award of attorneys' fees and costs. (Cal. Rules of Court, rule 3.769(c), (d).)

TENTATIVE RULING

Case: **Zenith Insurance Company v. Duffy et al.**
 Case No. CV2025-0320

Hearing Date: **April 23, 2026** **Department Fourteen** **9:00 a.m.**

Motion to strike defendants' answers:

Plaintiff Zenith Insurance Company's motion to strike defendants Jason Ryan Duffy and Judy Ann Reamer's (collectively, "defendants") answers for violation of court discovery orders is **DENIED**. (Code Civ. Proc., §§ 2023.010, 2023.030, subd. (d), 2030.290, subd. (c).) The Court finds that terminating sanctions are premature as defendants have only violated one court order. (*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604 ["a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective"]; Ernst Decl., ¶¶ 4-6.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

Parties are **DIRECTED TO APPEAR**.